

26PDUD00799 26PDUD00799

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Case Number: 26PDUD00799 Hearing Date: August 25, 2026 Dept: R

Big Island Property, LLC v.

Francisca Dominguez, et al.

Case no. 26PDUD00799

Motion for Summary Judgment (by

Plaintiff)

8/25/26, 1:30 PM

TENTATIVE

RULING

The Pleadings

On March 11, 2026, Plaintiff BIG ISLAND

PROPERTY, LLC ("Plaintiff") filed an unlawful detainer action against

Defendants FRANCISCA DOMINGUEZ and FELIX APARICIO ("Defendants") for the

mobilehome located at space #15C (aka TRLR 15C) (the "Property"), which sits

within Park

Monterey Mobilehome Park (the "Park"), whose address is 7433 Garvey Avenue, Lot, Rosemead, CA 91770. The Complaint alleges that Defendants entered a written agreement to rent the Property in 2023. Complaint, ¶ 6. The Complaint alleges that on October 6, 2025, Defendants were served with a 90-Day Notice to Vacate, which served as the statutory Notice to Quit (the "NTQ"), stating that Plaintiff was terminating their tenancy to withdraw the Property from the rental housing market. Id., ¶¶ 9-10, Exhs. 2-3. Following service of the NTQ, Defendants allegedly remain in possession of the Property. Id. ¶¶ 3, 9. Defendants filed a joint Answer to the Complaint that raised several affirmative defenses, including Plaintiff's violations of the Tenant Protection Act of 2019 ("TPA").

Plaintiff's

Motion for Summary Judgment

Plaintiff now moves for summary judgment, arguing that there are no triable issues of material fact as to unlawful detainer by Defendants. Plaintiff contends that withdrawal of a rental mobilehome from the housing market is a valid reason for eviction under the TPA, that the 90-day Notice complied with the requirements of the TPA, and that the Notice was properly served in compliance with CCP § 1162. Plaintiff argues that Defendants do not dispute any material facts and cannot establish any defenses to the action.

In a written Opposition, Defendants argue that there

remains a triable issue of material fact as to whether Plaintiff's reason for eviction is truly to remove only the subject Property from the rental housing market. Defendants argue instead that Plaintiff intends to close the mobilehome park completely, which would require Plaintiff to complete additional procedural requirements. Defendants suspect that Plaintiff plans to close the park because Plaintiff has failed to maintain the park's electrical system, more than half of the spaces in the park are vacant, and the park-owned mobilehomes are badly deteriorated. They also contend that the park's owners made written offers of \$25,000 to vacate toward several other renters in the park, confirming the "anticipated closure of the park." Defendants contend that in light of this anticipated closure, there remains a triable issue of material fact regarding Plaintiff's compliance with other state requirements under the Mobilehome Residency Law before closing a mobilehome park. This would also cast into doubt the stated basis and statutory justification for eviction under the TPA.

In a written Reply, Plaintiff argues that it was not required to complete these additional procedures because Defendants do not own the mobilehome itself or the Property where it sits. Thus, Plaintiff argues that the TPA controls the procedures of Defendants' eviction and that Defendants establish no issue of material fact as to its compliance with the

TPA.

Plaintiff's

Motion for Summary Adjudication

In

the alternative, Plaintiff moves for summary adjudication as to all of the

defenses raised in the Answer.

Requests for Judicial Notice

Evidence Code §

452(c)(d) provides that the Court may take judicial notice of "[o]fficial acts

of the legislative, executive, and judicial departments of the United States

and of any state of the United States" as well as "[r]ecords of any court of

this state." Both sides have misapplied the doctrine of judicial notice in this

case.

Plaintiff requests

the Court take judicial notice of the Complaint and Answer in the instant case.

The request is DENIED. The Court does not need to take judicial notice of

matters in its own case docket. Plaintiff also requests the Court take judicial

notice of uncertified copies of a Grant Deed and Fictitious Business

Name Statement. These requests are DENIED.

Defendants request

the Court take judicial notice of several documents filed in adjacent unlawful

detainer cases involving this Plaintiff, specifically LASC Case Nos.

23PDUD01067, 26PDUD00764, and 26PDUD00800. These requests are GRANTED pursuant

to Evidence Code § 452(d)(1). Defendants also request the Court take judicial

notice of a Notice and Order to Comply issued by the California Department of

Housing and Community Development. This request is DENIED.

Legal Standard

“In moving for summary judgment, a plaintiff ... has met

[its] burden of showing that there is no defense to a cause of action if [it]

has proved each element of the cause of action entitling [it] to judgment on

that cause of action.” Aguilar v. Atlantic Richfield Co. (2001) 25

Cal.4th 826, 849 (citations omitted. The plaintiff “must present evidence that

would require a reasonable trier of fact to find any underlying

material fact more likely than not—otherwise, he would not be entitled to

judgment as a matter of law but would have to present his evidence to a

trier of fact.” Id., at 851. Once the plaintiff has met that burden, the

burden shifts to the defendant to show that a triable issue of one or more

material facts exists as to the cause of action or a defense thereto.

CCP § 437c(p)(1). “There is a triable issue of material fact if, and only if,

the evidence would allow a reasonable trier of fact to find the underlying fact

in favor of the party opposing the motion in accordance with the applicable standard of proof." Aguilar, 25 Cal.4th at 850.

DISCUSSION

A. Plaintiff Has

Met Its Initial Burden On Summary Judgment

Notwithstanding any other law, after any tenant has continuously and lawfully occupied a residential real property for 12 months, the TPA prohibits the landlord from terminating a tenancy without "just cause," which must be stated in the written notice to terminate tenancy. Civil Code § 1946.2(a). Withdrawal of the residential real property from the rental housing market constitutes a "no-fault just cause." Id. § 1946.2(b)(2)(B). When terminating a tenancy for a no-fault just cause, the landlord must either assist the tenant by making a direct payment of relocation assistance or waive in writing the payment of rent for the final month of tenancy, prior to the rent becoming due. Id. § 1946.2(d)(1). If the landlord elects the latter, the written termination notice must state the amount of rent waived and that no rent is due for the final month of tenancy. Id. § 1946.2(d)(2).

In this case, the parties do not dispute that Plaintiff owns and operates the Park, wherein Defendants rent the Property. Deng Decl., ¶¶ 3-4; Dominguez Decl., ¶ 4. On October 6, 2025, Plaintiff served Defendants with

the NTQ, which stated that the termination of Defendants' tenancy was based on a "no-fault just cause" under the TPA because "the management of the Park is withdrawing the property from the rental housing market." The NTQ also stated Plaintiff's intent to waive the final month of rent in the amount of \$1,197.50. Plaintiff argues that Defendants remain in possession of the Property as of June 15, 2026. Deng Decl., ¶ 9.

The foregoing appears to show that Plaintiff has established its prima facie case for unlawful detainer.

B. Defendants

Raise a Triable Issue of Material Fact to Their Defense

Defendants argue that

"withdrawal from the rental market" is legally distinct from closure of the Park because there are additional requirements imposed on a landlord when closing a mobilehome park. Defendants specifically cite to Gov't Code § 65863.7 and argue that Plaintiff's failure to file an impact report is a statutory prerequisite to closure of the Park and Plaintiff's failure to do so bars unlawful detainer.

1. Mobilehome Residency Law

The Mobilehome

Residency Law ("MRL"), codified at Civil Code § 798 et seq., is a

comprehensive statutory scheme that defines the rights and obligations of mobilehome park landlords and the tenants renting spaces in a park. The MRL defines a “homeowner” as a “person who has a tenancy in a mobilehome park under a rental agreement” and a “resident” as a “homeowner or other person who lawfully occupies a mobilehome.” Civil Code § 798.11 (emphasis provided). But a “tenancy” is defined as “the right of a homeowner to the use of a site within a mobilehome park on which to locate, maintain, and occupy a mobilehome, site improvements, and accessory structures for human habitation, including the use of the services and facilities of the park.” Civil Code § 798.12 (emphasis provided).

At a high level, the MRL differentiates between the owner of a mobilehome who leases the land (and other benefits and services that come with the park) upon which the mobilehome sits from the renter of both the mobilehome itself and the land upon which it sits. In other words, ownership of the mobilehome structure itself confers different rights.

2. Termination of Lease Under MRL for

Closure of Park

The MRL significantly preempts the general rules governing termination of a mobilehome owner's tenancy, found generally at Civil Code § 798.55. Article 6 of this statute is entitled “Termination of Tenancy” and contains the following statement of

purpose:

The Legislature finds and declares that,

because of the high cost of moving mobilehomes, the potential for damage

resulting therefrom, the requirements relating to the installation of

mobilehomes, and the cost of landscaping or lot preparation, it is necessary

that the owners of mobilehomes occupied within mobilehome parks

be provided with the unique protection from actual or constructive eviction

afforded by the provisions of this chapter. ... The management may not

terminate or refuse to renew a tenancy, except for a reason specified in this

article and upon the giving of written notice to the homeowner, in the

manner prescribed by Section 1162 of the Code of Civil Procedure, to sell or

remove, at the homeowner's election, the mobilehome from the park within

a period of not less than 60 days, which period shall be specified in the

notice.

(emphasis provided).

As relevant to this

case, under the MRL, a park owner may terminate a mobilehome park tenancy when

there is a "change of use of the park or any portion thereof," but only

pursuant to multistage special notice procedures. Civil Code § 798.56(a)(7).

Before effecting a change of use, management must file an impact report with

the “local legislative body” detailing the effect of the proposed change on displaced mobilehome park “homeowners and residents.” Gov’t Code § 65863.7(a)-(h). The report must include a “replacement and relocation plan that adequately mitigates the impact upon the ability of the displaced residents ... to find adequate housing in a mobilehome park.” Id. (emphasis provided). A copy of the report must be provided to mobilehome residents at least 60 days before the hearing on the change of use and at the time a termination notice is served under the MRL. Civil Code § 798.56(b). If a hearing is not otherwise required on the change of use, any resident has a right to request a hearing before the legislative body on the sufficiency of the report. Gov’t Code § 65863.7(d).

Defendants argue that

Plaintiff was required to complete the additional procedural steps provided by Gov’t Code § 65863.7 because Plaintiff actually intends to close the Park in its entirety. In Reply, Plaintiff argues that neither the MRL nor Gov’t Code § 65863.7 applies to Defendants because they are not “homeowners” of the mobilehome where they reside. Plaintiff argues that none of the provisions of the MRL applies to a resident of a mobilehome park who is not a “homeowner.”

3. “Resident” vs. “Owner”

Plaintiff argues that

the entirety of the protections in the MRL against evictions that apply

to mobilehome owners would not apply to mobilehome renters and that, as

in this case, a renter of both the mobilehome and the space on which it sits

would have to look only to the TPA for various renter-specific protections.

Both the MRL and, to a smaller degree, Govt 65863.7 refer to an “owner” a

“homeowner” and a “resident.” The instant Motion hinges on the interplay

between these two statutory schemes and use of these common words that may have

different meanings in different contexts.

Plaintiff’s position

is sound in that many of the provisions of the MRL are specifically designed to

protect the rights of owners only and would be clearly not applicable to

a mobilehome renter. However, Plaintiff takes it further and argues that the

entirety of Civil Code § 798.56(a)(b) and Gov’t Code § 65863.8 also do not

apply to renters of mobilehomes, i.e., that Plaintiff would be exempt from

complying with both statutes when it seeks to evict a renter of a mobilehome

when its reason for doing so is change of use or closure of the park.

Both statutes above,

by their plain language, differentiate between an owner of the

mobilehome and a resident of the mobilehome. The MRL has separate

meanings for these terms: a “homeowner” is “a person who has a tenancy in a

mobilehome park under a rental agreement” (CCP § 798.9) whereas a “resident” is

“a homeowner or other person who lawfully occupies a mobilehome” (CCP § 798.11) (emphasis provided).

Plaintiff would have

the Court use these terms interchangeably and not differentiate between them

for any discrete provision of the MRL. “Under general settled canons of

statutory construction, we ascertain the Legislature’s intent in order to

effectuate the law’s purpose. We must look to the statute’s words and give them

their usual and ordinary meaning. The statute’s plain meaning controls the

court’s interpretation unless its words are ambiguous. If the plain language of

a statute is unambiguous, no court need, or should, go beyond that pure

expression of legislative intent.” *Hsieh v. Pederson* (2018) 23

Cal.App.5th Supp. 1, 5–6 (citations omitted). When interpreting a statute, “a

court is not authorized to insert qualifying provisions not included and may

not rewrite the statute to conform to an assumed intention which does not

appear from its language.” *Boston v. Penny Lane Centers, Inc.*, (2009) 170

Cal.App.4th 936, 952 [citation omitted]; see also Civil Code § 3530 (“That

which does not appear to exist is to be regarded as if it did not exist.”)

Moreover, “when a legislature ‘includes particular language in one section of a

statute but omits it in another section of the same Act, it is generally

presumed that [it] acts intentionally and purposefully in the disparate

inclusion or exclusion.” *Yost v. Forestiere* (2020) 51 Cal.App.5th 509,

525.

In interpreting the

relevant statutes, and without precise guidance from a higher court, the Court

first notes that that while the MRL refers to Gov’t Code § 65863.7 at least

once, this statute and the MRL arise in different statutory schemes: the MRL is

contained within the real property provisions of the Civil Code, and the former

is but one part of various zoning provisions of the Government Code. Both statutes

also use different language to refer to the relevant recipients of the impact

report: the former provides grounds for eviction for “homeowners,” while the

latter requires the service of an impact report on “residents.” Both the MRL and Government Code §

65863.7 include subdivisions that specify that the impact report shall be given

to the homeowners or residents at the same time that the MRL-specific

“notice of change of use” is given, implying that the impact report is separate

from this notice of change of use. See Civil Code § 798.56(b); Gov’t

Code § 65863.7(c).

Gov’t Code § 65863.7 requires the filing of an impact

report that shall “include” a plan that mitigates the displaced residents’

ability to relocate, to be reviewed by a legislative body, who will make a

finding as to whether the closure of the mobilehome park “will result in or materially contribute to a shortage of housing opportunities and choices for low- and moderate-income households within the local jurisdiction.” It follows that the impact report is a separate requirement that must be fulfilled when a mobilehome park is closed for any reason because the closure of the park impacts more than just homeowners, but also residents and the surrounding low-income community.

To be sure, there are

provisions of Gov’t Code § 65863.7 that would apply only to a homeowner of a mobilehome. For instance, § (a)(2)(A): “If a displaced resident cannot obtain adequate housing in another mobilehome park, the person or entity proposing the change of use shall pay to the displaced resident the in-place market value of the displaced resident’s mobilehome.” This clearly would not apply to a renter of a mobilehome, since such a non-owner would not be paid the value of the displaced home. However, the hearing required by this section would not seem to be limited to homeowners only: per Gov’t Code § 65863.7(d), any “park resident” may request a hearing regarding the impact report and, presumably, the topics discussed in Gov’t Code § 65863.7(e)(1): “the overall housing availability within the local jurisdiction, [whether the closure of the park] will result in or materially contribute to a shortage of housing opportunities and choices for low- and moderate-income households

within the local jurisdiction.” After such hearing, the legislative body “may require, as a condition of the change, the person or entity proposing the change in use to take steps to mitigate any adverse impact of the conversion, closure, or cessation of use on the ability of displaced mobilehome park residents to find adequate housing in a mobilehome park.” Gov’t Code § 65863.7(e)(2).

In other words, only a mobilehome owner may be compensated for the appraised value of the mobilehome that may be affected by the change, but the statute does not limit a resident from having a voice to protest the change or closure of the park and, perhaps, obtain “mitigation” at the legislative body’s hearing.

The parties both refer to *Keh v. Walters* (1997) 55 Cal.App.4th 1522, where the Court of Appeal held that a mobilehome park owner had admittedly not prepared or submitted an impact report per Gov’t Code § 65863.7 and thus had not complied with the eviction provisions of the MRL, as the owner admittedly served an eviction notice on mobilehome owners intending to close the entire park in stages, space by space, as each space became vacant, without any particular development plan in mind. *Id.* at 1539. In *Keh*, the appellate court held that the park owner could not evade the requirements of Gov’t Code § 65863.7 by closing the park or changing use in piecemeal fashion. *Id.* at 1538-39.

Plaintiff argues that

Keh is not applicable to the instant case because the requirements of Gov't Code § 65863.7 are triggered

only by the MRL and the MRL only applies to owners of mobilehomes and

not—as in this case—renters of mobilehomes. Plaintiff offers no

convincing authority that Gov't Code § 65863.7 is triggered only by the owner-only

provisions applicability of the MRL, rather than by the mobilehome park owner's

intent to close the park or change its use. Further, the statute's stated

purpose and intent to require mobilehome park owners to file impact reports

would be defeated by Plaintiff's interpretation that mere renters or residents

are not entitled to its protections. Keh itself notes the applicability

of Gov't Code § 65863.7 to

homeowners and renters:

Civil Code § 798.56, which

was added to the statute in 1988, further provides that the report

required pursuant to subdivisions (b) and (i) of section 65863.7 of the

Government Code shall be given to the homeowners or residents at

the same time that notice is required pursuant to subdivision (g) of this

section.

Id. at 1526. Again, listing

“homeowners” and “residents” as separate words implies they are separately

situated interested parties.

Keh

also referenced Gov't Code § 65863.8, which sets the timing for the hearing

required after the impact report of Gov't Code § 65863.7 and discusses the requirements of notifying both "residents

and mobilehome owners of the mobilehome park" of the impact report and hearing.

Id. at 1527. These sections of the Government Code refer to homeowners

and residents separately.

4. Evidence of the Park's Closure

Defendants contend

that they have lived at the Property since 2014, and they do not dispute that

Plaintiff owns both the land and the mobilehome that they occupy. Dominguez

Decl., ¶ 4. The NTQ in this case states the removal of the Premises—but not

necessarily the entire Park—from the rental market and the parties dispute

whether that triggers compliance with Gov't Code § 65863.7.

Plaintiff argues that

Defendants' evidence of differing motive is largely speculative as to its true

intent to close the entire Park. Reply at 6. However, the Court finds that this

line of inquiry is not germane to deciding the instant motion.

As discussed above, because

Plaintiff's stated purpose in serving the NTQ was to take the Property off the

market, this triggered the provisions of Civil Code § 798.56(a)(7)—“change of use of the park or any portion thereof.” Keh supports this reading of the Civil Code. Based on this evidence, the Court finds that there remains a triable issue of material fact as to whether Plaintiff intends to remove the Property from the rental housing and thus, whether Plaintiff was required to comply with Gov’t Code § 65863.7. No evidence has been proffered by Plaintiff as to compliance with the above—in fact, its argument in support of the instant motion is that it is not required to do so.

C. Plaintiff is Entitled to Partial Summary

Adjudication

Plaintiff moves for summary adjudication as to all of the affirmative defenses raised in Defendants’ Answer. Motion at 6-9. As a threshold matter, many of the “affirmative defenses” raised in the moving papers, as listed in Defendants’ Answer, are not actual affirmative defenses at all—as that term is defined by statute, treatise and jury instruction. Rather, the form Answer checked many boxes of alleged defenses, many of which are either not actual affirmative defenses or else would not apply to the allegations of the Complaint. For example, “breach of the warranty of habitability,” alleged in the Answer, is inapplicable as an affirmative defense to an unlawful detainer action where failing to pay rent is not a basis

of eviction. Similarly, “waiver” for Defendants’ attempted tender of rent would not lie in this case.

Here, the parties do

not dispute that Plaintiff is the current owner of the subject Property. Deng

Decl., ¶ 3; Dominguez Decl., ¶ 4. Defendants offer no evidence that Plaintiff

lacks capacity to sue or that Plaintiff has not complied with the fictitious

business name statute or that there does not exist a valid landlord/tenant

relationship. Similarly, Defendants offer no evidence that Plaintiff failed to

comply with the provisions of the Tenant Protection Act.

Defendants argue that

there was prior litigation between the parties related to unlawful detainer,

complaints made by Defendants as to breaches of the lease and sub-standard

conditions at the Park as well as failed negotiations related to this dispute.

This evidence is uncontroverted by Plaintiff, who instead argues in Reply that

it is irrelevant to the instant motion. While such evidence does not operate to

defeat summary judgment, it is probative as to Defendants’ affirmative defense of retaliation.

Defendants have

raised sufficient evidence as to create a triable issue as to the affirmative

defense of retaliation. Defendants have not produced evidence as to any other

purported affirmative defenses, other than lack of compliance with the MRL.

Those two defenses survive the instant motion; the rest do not.

DISPOSITION

Based

on the foregoing, Plaintiff's Motion for Summary Judgment is DENIED.

Plaintiff's Motion for Summary Adjudication is GRANTED IN PART: all purported

affirmative defenses except non-compliance with the MRL and retaliation are

stricken.